

LEGITIMISING THE CONCEPT OF OPEN ADOPTION IN INDIA

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Abstract

Open adoption, where adoptive families maintain some level of contact with birth parents, is gaining recognition globally. In India, traditional closed adoption practices prevail, but there is a growing need to explore open adoption's potential benefits. Adoption laws in India, governed by the Hindu Adoptions and Maintenance Act, 1956, and the Juvenile Justice (Care and Protection of Children) Act, 2015, traditionally emphasise severing birth family ties upon adoption. However, the concept of "open adoption" is gaining traction internationally. Open adoption allows adopted children to maintain contact with their birth families, enabling them to understand their history, cultural roots, and access crucial medical information. Open adoption arrangements vary, with some countries like the US allowing post-adoption contact agreements between birth and adoptive parents. In the UK, "letterbox contact" facilitates limited communication. The England and Wales Court of Appeal recently emphasised the court's role in deciding post-adoption contact, disagreeing that adoption means complete severance of birth family ties. Advantages of open adoption include enhanced child identity, reduced feelings of loss, and access to medical history. In India, the Juvenile Justice Act allows adoption by relatives, potentially maintaining some birth family connection. Policymakers must balance the child's psychological stability with the potential benefits of open adoption.

Keywords: *Open Adoption, Birth Family, Adoptive Family, Child Welfare, Post-Adoption Contact, Letter box Contact.*

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INTRODUCTION

Adoption as an institution has been present since ancient times, involving the severance of a child from its birth or biological family and their placement into an adoptive family. Thus, adoption signifies the establishment of a legal relationship between individuals who are not biologically related as parent and child. While it is difficult to determine the first instance of adoption in India or ascertain its precise origins, references to adoption can be found in the Rigveda and other Vedic scriptures. During the Aryan period, the primary purpose of adoption was to ensure family fulfilment and the continuity of lineage, with a focus on the rights of adoptive parents. However, without delving into the evolution of adoption laws in India—a topic that merits separate discussion—it is noteworthy that the focus of adoption has shifted significantly over time. Today, the emphasis is on being child-centric, prioritising the ‘best interests’ and ‘welfare’ of the child rather than merely serving complete families.

In India, adoption is governed by two key legislations: the Hindu Adoptions and Maintenance Act, 1956, which applies specifically to Hindus, and the Juvenile Justice (Care and Protection of Children) Act, 2015, which facilitates the adoption of orphans, abandoned, and surrendered children, regardless of religious background. This paper, however, discusses the implications of severing relationships with a child’s birth family upon adoption and discourses on the prospects of maintaining contact between adopted children and their birth families. It explores whether such contact enhances the welfare and best interest policies established for the child. This discussion aims to ascertain the potential benefits and challenges of preserving these familial connections in the context of post-adoptive placements.

Key Objectives:

- To examines the implications of severing ties with a child's birth family upon adoption in India.
- To explores the prospects of maintaining contact between adopted children and their birth families.

REVIEW OF LITERATURE

Adoption in India - the Past, Present and the Future Trends written by Saras Bhaskar has rightly pointed out that Adoption in India has evolved significantly from traditional practices of

adopting a male child for performing last rites to a more progressive approach focusing on child welfare. The key points of the articles are as follows:

- Adoption has been practised in India for thousands of years, with references in Hindu epics like the Ramayana and the Mahabharata.
- Hindu Adoption and Maintenance Act (HAMA), 1956, governs adoption for Hindus, Buddhists, Jains, and Sikhs.
- Juvenile Justice (Care & Protection of Children) Act, 2000 allows secular adoption for all citizens.
- The Guardians and Wards Act, 1890, applies to Muslims, Christians, Parsis, and Jews for guardianship.

If we are talking about Trends and Challenges, the author has pointed out that:

- Domestic adoption has gained momentum with government regulation.
- Inter-country adoption was more prevalent due to lack of uniform laws and social stigma.
- Challenges include private adoptions, lack of data, and cultural preferences for male children.

Adoption laws in India are primarily governed by the Hindu Adoption and Maintenance Act (HAMA), 1956 for Hindus, Buddhists, Jains, and Sikhs. This act allows for the adoption of a child, giving the adopted child the same rights as a biological child.

Whereas the following key Points on Adoption in India are found in the article Adoption Laws in India: Challenging Existing Law” written by Niraj Meena

a) Hindu Adoption and Maintenance Act (HAMA), 1956:

- Applies to Hindus, Buddhists, Jains, and Sikhs.
- Allows for adoption of a child with rights similar to a biological child.
- Restrictions on adopting a child of a particular sex if parents already have a child of that sex.

b) Guardians and Wards Act, 1890:

- Applies to Muslims, Christians, Parsis, and Jews who can't adopt under their personal laws.
 - Establishes a guardian-ward relationship rather than full adoption rights.
- c) Juvenile Justice (Care & Protection of Children) Act, 2000:
- Applicable to all Indian citizens.
 - Allows adoption of children, conferring parent-child status.
- d) Adoption Across Religions in India:
- Hindus, Buddhists, Jains, and Sikhs follow HAMA for adoption.
 - Muslims, Christians, Parsis, and Jews use the Guardians and Wards Act for guardianship, not full adoption.

In the article¹ “Bridging the Divide: Openness in Adoption and Post-adoption Psychosocial Adjustment among Birth and Adoptive Parents” written by J Fam Psychol & et.al., study examines the association between the degree of adoption openness and post-adoption adjustment among birth and adoptive parents. Using data from 323 matched pairs of birth mothers and adoptive parents, the study found that openness was significantly related to satisfaction with the adoption process among adoptive parents and birth mothers. Increased openness was positively associated with birth mothers' post-placement adjustment. Where it is found that:

- Openness was associated with greater satisfaction with the adoption process among adoptive parents and birth mothers.
- Increased openness was positively associated with birth mothers' post-placement adjustment.
- Birth fathers' report of openness was associated with their greater satisfaction with the adoption process and better post-adoption adjustment.

Relating to present trends, the article discusses the shift from closed to open adoptions and the debate surrounding the implications of openness on post-placement adjustment of birth and adoptive parents. Proponents of open adoption suggest benefits like increased security for

¹ J Fam Psychol, “Bridging the Divide: Openness in Adoption and Post-adoption Psychosocial Adjustment among Birth and Adoptive Parents” 22 (4) *Journal of Family Psychology* 529 (2008), available at: <https://doi.org/10.1037/a0012817> (last visited on: 24.11.2026).

adoptive parents and reduced grief for birth mothers. Opponents argue that openness might impede attachment and bonding between adoptive parents and the child.

Effects of Adoption

Section 12 of the Hindu Adoptions and Maintenance Act, 1956, emphatically states:

“An adopted child shall be deemed to be the child of his or her adoptive father or mother for all purposes with effect from the date of the adoption and from such date all the ties of the child in the family of his or her birth shall be deemed to be severed and replaced by those created by adoption in the adoptive family”²

Furthermore, Section 63 of the Juvenile Justice (Care and Protection of Children) Act, 2015 enunciates:

“A child in respect of whom an adoption order is issued..., shall become the child of the adoptive parents, and the adoptive parents shall become the parents of the child as if the child had been born to the adoptive parents, for all purposes, including intestacy, with effect from the date on which the adoption order takes effect, and on and from such date all ties of the child in the family of his or her birth shall be severed and replaced by those created by the adoption order in the adoptive family.”³

Severing and replacing the ties with the birth family can be easily understood – it means that the adopted child no longer bears any familial relationships with its birth family. Certain rights, especially in relation to succession and devolution of property, are retained. However, for the purposes of this paper, this topic does not merit a discussion.

Notwithstanding the above, is it plausible to enable the adopted child to remain in contact, where possible, with its birth family? The following section highlights the importance of this.

A GROWING RECEPTION TOWARDS OPEN ADOPTION

The Cambridge Dictionary defines ‘open adoption’ as “an arrangement by which children are legally adopted by people who are not their natural parents but still continue to communicate with their natural parents”.

² The Hindu Adoptions and Maintenance Act, 1956 (Act 78 of 1956), s.12

³ The Juvenile Justice (Care and Protection of Children) Act, 2015 (Act 2 of 2016), s.63

In broad terms, open adoption refers to an adopted child's birth family staying in touch with them. It covers a range of potential arrangements in which birth parents or other family members may stay in touch.

Although no legal definition of the topic is available, even in international law, several countries are increasingly acknowledging the concept. Although no country has formalised the idea into a legal framework, it is slowly gaining traction. For instance, in the US, it is common to see post-adoption contact agreements between birth parents and adoptive parents, which often formalise the obligations of the parties towards each other once the adoption has been finalised. The enforceability of such agreements differs from state to state, and most often, the child's best interest will be the overriding consideration.

In the United Kingdom, the concept of 'letterbox contact' has long been in practice, allowing adopted children to maintain limited contact with their birth families or significant family members through letters, carefully arranged visits, or sometimes newsletters from the adoptive parents to the birth family, which include updates on the child's growth and development.

The England and Wales' Court of Appeal's recent decision in *R & C (Adoption or Fostering)*⁴ is particularly remarkable in this context. The court considered whether there should be ongoing contact between the adopted child and its siblings and, in doing so, emphasised the court's ultimate responsibility, as opposed to that of the local authority or adoptive parents, in setting the tone for post-adoption contact. The court also disagreed with the trial judge's position that adoption meant the complete and irrevocable severance of all ties with the birth family.

ADVANTAGES OF OPEN ADOPTION

The primary advantage of open adoption is that it allows the adopted child to be aware of their history and gain a cultural awareness of their roots. It may also lessen the child's feelings of being lost and rejected, which is often the case, particularly with adolescent children.

Furthermore, remaining in touch with the birth family would help adopted children to have access to crucial medical history within the family, especially for hereditary diseases and illnesses.

In modern times, with the growing prevalence of social media, it may be nearly impossible to completely and irrevocably sever ties between birth families and adopted children when

⁴ (2024) EWCA Civ 1302

individuals can be reached with the click of a button. To keep up with these changes, it becomes essential to consider legitimising open adoption.

OPEN ADOPTION UNDER THE SCHEME OF THE JJ ACT

The evolution of the Juvenile Justice Act since its initial enactment in 1986 has changed the landscape of adoption in India by particularly enabling non-Hindus to adopt children who have been abandoned, surrendered or orphaned. This position has been reinforced by case laws of the Hon'ble Apex Court of India, where Muslims have been permitted to adopt under the JJ Act.⁵ However, this is not the only salient feature of the Act.

The most recent re-enactment of the JJ Act in 2015 also allows adoption by relatives of the child. This procedure may be particularly beneficial in cases of orphaned children who, if adopted by relatives, will retain some connection to their original family. The question of open adoption or maintaining contact with the birth family may not be as pertinent in the context of orphaned children, especially in relation to the birth parents, who would presumably be deceased. This brings us to the consideration of post-adoption contact in cases of abandoned and surrendered children. However, before discussing the same, it is essential to distinguish between the two.

Abandoned children are those whose parents or guardians have deserted them, and often, it may not be possible to trace the parent or guardian responsible for their abandonment. Surrendered children, in contrast, are those whose parents or guardians have given them up due to physical, emotional, or social factors beyond their control. In both cases, it remains to be determined whether the biological parents can be identified and if they wish for their identity and responsibilities towards the child to be assumed by an adoptive family while maintaining limited contact. The primary challenge in such situations would be, of course, the potential for creating instability and confusion in the child's life, particularly if the child is very young. The judiciary would certainly need to play a robust role in addressing legislative gaps should such a concept ever receive approval from Parliament. However, having discussed the advantages of open adoption, this is undoubtedly a consideration for law and policymakers.

Under the Hindu Adoptions and Maintenance Act 1956, the difficulty of tracing the birth parents or significant family member may not be as pertinent as adoption under Hindu Law is not limited to that of abandoned, surrendered and orphaned children. Regardless, the concerned

⁵ *M/s Shabnam Hashmi v. Union of India*, AIR 2014 SC 128. The Hon'ble Supreme Court, in this case, held that the JJ Act is an enabling legislation aimed at achieving the objectives of the Uniform Civil Code. Therefore, persons of any religion could adopt under this framework, subject to the applicable rules.

authorities would need to play a careful balancing act while maintaining the child's psychological stability, whilst giving effect to the advantages of open adoption.

JUDICIAL PRONOUNCEMENTS

In the following cases, the Supreme Court gave several judgments regarding the protection of the rights of a child, like in *Shabnam Hashmi v. Union of India*⁶, in *Sawan Ram v. Kalawanti*⁷, in *Srinivas Krishnarao Kango v. Narayan Devji Kango*⁸, in *Laxmi Kant Pandey v. Union of India*⁹, *Philips Alfred Marvin v. V. J. Gonsalves*¹⁰, *Rahasa Pandiani (Dead) by Lrs. v. Gokulananda Panda*¹¹, *A.S. Sailaja v. Principal, Kurnool Medical*¹².

CONCLUSION

In conclusion, the discourse on open adoption in India emphasises a significant shift towards prioritising the well-being and best interests of the child. As legal frameworks in other countries begin to recognise and formalise arrangements that allow for ongoing communication between adopted children and their birth families, there is a vital opportunity for India to explore similar practices. Embracing open adoption could not only enrich the adopted child's identity but also provide emotional support by preserving key familial connections.

Given the complexities and challenges of post-adoption relationships, policymakers and stakeholders must consider the diverse needs of children, adoptive parents, and birth families. By fostering a dialogue around open adoption, India can create a more inclusive, empathetic approach to adoption that aligns with contemporary understandings of family, attachment, and the child's best interests. Thus, the exploration of open adoption paves the way for a more holistic understanding of adoption practices in India, ultimately benefiting all parties involved.

⁶ AIR 2014 SC 1281

⁷ AIR 1967 SC 1761

⁸ AIR 1954 SC 379

⁹ AIR 1984 SC 469

¹⁰ AIR 1999 Ker 187

¹¹ AIR 1987 SC 962

¹² AIR 1986 AP 209